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Provision of June 22, 2023
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree No. 196 of June 30, 2003, as amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD TO the report of September 8, 2021, submitted by the National Association of Public Service Users (hereinafter "Assoutenti"), which brought to the attention of the Guarantor the initiative undertaken by Autostrade per l'Italia S.p.A. concerning the use of an application aimed at allowing the total or partial reimbursement of the cost of the motorway ticket for delays due to construction sites for works;

HAVING EXAMINED the documentation on record;

HAVING REGARD TO the observations made by the Deputy Secretary General pursuant to Article 15 of the Regulation of the Guarantor No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. The investigative activity concerning the Company.

With a communication submitted on September 8, 2021, Assoutenti raised some critical issues regarding the processing of personal data of users carried out by Autostrade per l'Italia S.p.A. (hereinafter "ASPI") and Free to X S.r.l., through the application called "Free To X" (hereinafter "App"), aimed at allowing the total or partial reimbursement of the cost of the motorway ticket for delays due to construction sites for works (so-called Cashback service).

In this regard, ASPI, in response to the requests for information sent by the Guarantor on November 9, 2021, May 10, 2022, and May 18, 2023, with notes dated November 23, 2021, May 24, 2022, and May 29, 2023, stated that:

- the origin of the reimbursement system for motorway users called Cashback "is to be traced back to the settlement agreement concluded to define the procedure for alleged serious non-compliance by ASPI by MIMS (formerly the Ministry of Infrastructure and Transport - MIT) ('Agreement')". Indeed, ASPI devised this reimbursement mechanism to implement the compensatory measures that it committed to implement with that Agreement, subject to the approval of the Ministry of Infrastructure and Sustainable Mobility (hereinafter "MIMS"). To obtain the aforementioned approval, ASPI submitted a formal request for authorization on July 15, 2021, in which it was "fully and expressly described that the reimbursement program, provided for by the Agreement, would be offered through Free to X (a company established on January 20, 2021, and wholly owned by ASPI), with a model of outsourcing attributable to the so-called 'turnkey contract' to be borne by the controlled company" (see note of May 24, 2022, pp. 1 and 2);
- following the obtaining, on July 21, 2021, of the approval from MIMS "ASPI entrusted Free To X S.r.l. (..) to manage through the eponymous App the service called 'Cashback' (..) - service for managing reimbursements for significant delays caused by the presence of construction sites on the motorway sections entrusted to ASPI" (see note of November 23, 2021, p. 1);

- regarding the “processing of personal data carried out within the Cashback service, ASPI operates as a data processor pursuant to Article 28 GDPR” (see note of November 23, 2021, p. 2 and Attachments 1 and 2);

- “the App was officially made available (..) on September 14, 2021, in a trial regime (..) started on September 15, 2021” (see note of November 23, 2021, p. 1);

- the total number of users registered on the App “is equal to 308,058 (three hundred eight thousand fifty-eight) - of which only about one third consists of users registered for the Cashback service - against over 800,000,000 (eight hundred million) annual transits along the ASPI motorway network carried out by millions of users” (see note of May 29, 2023, p. 2).

As part of the investigative activity, information was also obtained from Free to X S.r.l. (see notes from the Guarantor of November 9, 2021, and May 10, 2022), which, in communications dated November 23, 2021, January 19, 2022, and May 24, 2022, represented the following:

- Free to X S.r.l. “is a company wholly owned by ASPI that provides and manages the eponymous App, through which users can access the ‘Cashback’ services” (see note of November 23, 2021, p. 2);

- with particular regard to “the processing of personal data carried out within the Cashback service, [it] operates as the data controller” (see note of November 23, 2021, p. 2);

- the need to implement the Cashback reimbursement service arose in light of the Agreement for the negotiated definition of the procedure for alleged serious non-compliance by ASPI by MIMS (hereinafter “Agreement”), which provided for “compensatory measures to be borne by ASPI on toll rates (...) including amounts from

allocate, in the period 2021-2024, to discounts/refunds tariffs for the benefit of highway users (..).

Among the methods of fulfilling the contractual commitments undertaken in the terms described above,

ASPI has chosen to fully entrust Free to X

(..) with the design and subsequent management of a system that recognizes refunds to highway users and delays due to the presence of

construction sites for the execution of extraordinary maintenance work on the highway sections under

ASPI's responsibility (so-called Cashback service)” (see note of January 19, 2022, p. 3; see also p. 4);

- “although ASPI has contracted the Company for the implementation of the [Cashback] service (..), for the purposes of identifying the data controller, Free to X

has considered it predominant that both the design

and the subsequent management of the entire

service would be the exclusive domain of

the Company with full and autonomous decision-making powers”; this

regarding both the “purposes (i.e. provision

of the App and enjoyment of the Cashback service with

the related payment of refunds to the user's bank account,

customer care assistance from Free to X during registration and use of

the Cashback service; compliance with

legal obligations or requests from competent authorities, sending of newsletters)” and the “means (essential and non) of

processing users' data (i.e. the type of

personal data to be processed for the Cashback service, the retention periods of the aforementioned data, the recipients thereof, the security measures to be adopted, the subjects to be appointed as

data processors)” (see note of January 19, 2022, pp. 4 and 5);

- the experimental phase of the App implementation

formally concluded on December 30, 2021 (see note

of January 19, 2022, p. 6).

2. Initiation of the procedure for the adoption of

corrective measures.

On October 19, 2022, the Office notified the Company, pursuant to Article 166, paragraph 5, of the Code, of the alleged violations found, with reference to Articles 5, paragraph 1, letter a) and 13 of the Regulation, as well as Article 28 of the Regulation, contesting the incorrect configuration of the subjective scope of the processing and the inadequacy of the information provided to users.

With the note of December 1, 2022, the Company submitted its defense writings, stating that:

- a. within the aforementioned Agreement, “ASPI is bound exclusively to compliance with macro-parameters, including the amounts to be allocated in the period 2021-2024 to discounts and/or tariff refunds for the benefit of highway users” and “has never proposed the creation of a service that necessarily involved the processing of personal data. The Cashback service (..) was entirely designed and implemented by Free to X through the creation of the eponymous App”; the Company therefore did not act as the data controller, as it limited itself “to the sole determination of the purpose” of the same without intervening in any way on the related purposes and means (see note of December 1, 2022, p. 2);
- b. it has nonetheless acknowledged the position of the Authority by “modifying its role, attributing to itself the ownership of the processing of data related to the Cashback service”. Therefore, “in addition to some (..) technical-management adjustments aimed at ensuring the effective ownership of ASPI”, the latter, as of December 15, 2022, modified the documents containing the “Privacy Policy of the App”; the “Terms and Conditions of the App”; and also prepared the messages to be sent “via email to all users registered on the App for the change of the Data Controller” (see note of December 1, 2022, p. 3);
- c. in light of the above, it also prepared,

on November 21, 2022, the “Appointment of Free to X S.r.l. as data processor for all services of the App,” as indicated in attachment no. 1 to the note of December 1, 2022;

- d. ASPI “immediately implemented every measure aimed at remedying the original flawed situation and at mitigating any prejudice to the interested parties” and “did not obtain any economic benefit from the processing subject to the alleged violation,” considering that “the Cashback service as well as the other related services are provided free of charge” (see note of December 1, 2022, pp. 5 and 7);
- e. finally, it noted “that from the date of the last note sent by ASPI on May 24, 2022, the Authority had all the elements to easily ascertain the alleged violation; nevertheless, this violation was notified, through the communication in question, only on October 19, 2022, well beyond the ninety-day deadline set by law starting from the conclusion of the inspection activity” (see note of December 1, 2022, p. 7).

Subsequently, with a note dated December 21, 2022, ASPI

noted that it had further modified, on December 19, 2022, the documents containing the “Privacy Policy of the App” and the “Terms and Conditions of the App” mentioned above, “by virtue of the obligations undertaken with the Antitrust Authority, ASPI, through Free To X S.r.l.”, in order to proceed with the configuration “by December 31, 2022 [of] a new section of the website www.freeto-x.it aimed at allowing users, in addition/alternatively to the methods offered through the “Free To X” App, to register for the Cashback service” (see note of December 21, 2022, p. 1 and related attachments no. 2a containing the “Updated Privacy Policy of the App and the Site” and no. 3a relating to the “Terms and Conditions of the App and the Site”).

3. Observations on the regulations concerning the protection of personal data relevant to the case at hand.

As a preliminary matter, in light of what has been raised by ASPI in its defensive memoranda, it is worth making some clarifications regarding the procedural deadlines, as provided by the Garante Regulation No. 2/2019, adopted on April 4, 2019, concerning the identification of deadlines and the organizational units responsible for administrative procedures before the Garante for the protection of personal data (hereinafter “Reg. No. 2/2019”).

In this regard, it should be noted that, contrary to what the Company claims (see above para. 2, lett. e), the 90-day deadline provided by Law No. 689 of November 24, 1981 does not apply to the procedure in question, but rather the deadline specifically identified by the Garante, pursuant to Article 154, paragraph 3 and Article 166, paragraph 9 of the Code, with the aforementioned Garante Regulation No. 2/2019, which came into force following its publication in the Official Gazette No. 107 of May 9, 2019.

The latter indeed establishes that the notification, referred to in Article 166, paragraph 5 of the Code, concerning the alleged violations, must be made within 120 days from the ascertainment of the same (see Table B, part 2 of Reg. No. 2/2019). It should also be noted that, as highlighted by the case law, in the event of multiple interconnected violations, “the appropriateness of the overall time taken” by the proceeding administration for the ascertainment of the aforementioned violations is nonetheless closely linked “to the complexity of the investigative activity” carried out by it (Cass. Section I civil of April 4, 2018, No. 8326).

In any case, it must be considered that the aforementioned 120-day deadline “is suspended from August 1 to August 31 of each year and resumes from the end of the suspension period” (see Article 6, paragraph 1 of Reg. No. 2/2019). Furthermore, it starts from when the ascertainment activity has been carried out, that is, from when both the collection of the evidentiary elements and their evaluation by the administration have been completed (see, in this regard, Cass. of August 8, 2005, No. 16642; see also, Cass. Section II civil of November 28, 2012, No. 21114 and Cass. Section II civil of April 22, 2016, No. 8204).

In light of the above clarifications regarding the procedural deadlines applicable to the case at hand, as provided by current regulations (including those identified by Article 6, paragraph 1 of Reg. No. 2/2019), it follows, therefore, with reference to the procedure under examination, that the Authority has complied with them; this considering the actual time elapsed between the ascertainment of the violation and the contestation of the same.

Having duly stated this, regarding the violations ascertained by this Office in the case at hand, it is represented that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Garante, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Garante and interruption of the execution of the tasks or the exercise of the powers of the Garante.”

Based on the elements acquired during the investigative activity as well as the subsequent evaluations of the Authority regarding this matter, it has been ascertained that the processing of personal data of users, related to the Cashback service, provided through the Free to X App, has been carried out by

ASPI, as the data controller, in violation of the Regulation, in the terms more extensively detailed below.

In this regard, it is necessary, first of all, to highlight that the services offered through the aforementioned App involve distinct operations of user data processing, carried out, in different capacities, by ASPI and by Free to X S.r.l.

Specifically, these relate to those connected to the provision of the Cashback service - the subject of contestation in the case at hand - other related services, as well as those aimed at the registration and management of the user account (see in this regard, note from Free to X S.r.l. dated November 23, 2021, Annex No. 2 – “App Free To X: Overview of the main functionalities of the app currently available in the Apple and Google stores (version 2.21.4),” pages 2, 18, 21, and 23).

Considering the above, for the correct application of the regulations concerning the protection of personal data with respect to the aforementioned processing, it is therefore necessary to accurately identify the subjects that process the personal data mentioned above and clearly define, with reference to the case at hand, their respective attributions, particularly that of the data controller and the data processor (Article 4, paragraph 1, points 7 and 8 and Article 28 of the Regulation).

In this regard, it is recalled that the data controller is the subject who determines the purposes and means of the processing. Therefore, the decisions regarding the “‘why’ [that is, ‘for what purpose’ or ‘for what reason’ the processing is carried out] and [the] ‘how’ of the same [that is, what means are used to achieve that objective]” are fully and exclusively entrusted to the autonomy of the controller (see European Data Protection Board - hereinafter “EDPB”, Guidelines No. 07/2020 on the concepts of data controller and data processor under the GDPR, of July 7, 2021, page 16).

Consequently, the processor - as the subject acting on behalf of the controller (Article 4, No. 8 of the Regulation) - “is required to follow the instructions given [by the latter] (...) regarding the purpose of the processing and the essential elements that constitute its means” (see EDPB, Guidelines no. 07/2020, cited, p. 28).

That said, it is also understood that, for the correct identification of the subjective scope of the processing, the roles of data controller and data processor must be established based on an assessment of the specific circumstances related to it.

This is, in fact, an assessment that must take into account the relevant factual elements of the specific case, as it aims to identify the subject that exercises a decisive influence over the processing of the personal data in question (see EDPB, Guidelines no. 07/2020, cited, p. 13).

4. The violations identified in relation to the processing concerning the Cashback service.

Having clarified this, in relation to the processing concerning the Cashback service that is the subject of this proceeding, the claims made by the Company in its defense submissions of December 1, 2022 (see above para. 2, letter a) cannot be accepted; this in light of the elements detailed below:

- the reimbursement mechanism called Cashback was identified by ASPI as the concessionaire for the construction and operation of the motorway network (see Convention of September 18, 1968, no. 9297, approved by interministerial decree of October 12, 1968, no. 2890), as a form of implementation of the compensatory measures contained in the Agreement signed on October 14, 2021, with the MIMS to define the procedure for the alleged serious breach against it (see ASPI note of May 24, 2022, pp. 1-3);

- from the documentation acquired during the investigation, it emerged that the nature of the compensatory measures, as well as the methods of fulfilling them, were defined autonomously by ASPI, after obtaining ministerial clearance and in compliance with regulatory constraints and the parameters defined by the Agreement. In particular, it is ASPI that specifically “conceived the reimbursement mechanism called Cashback,” commissioning Free to X S.r.l. to develop “a computer tool” aimed at offering “a free, smart, and user-friendly solution for managing refunds for significant delays caused by the presence of construction sites on the motorway sections entrusted to ASPI” (see ASPI note of May 24, 2022, Annex 11A - “Request for clearance submitted to the MIMS” on July 15, 2021, and Attachments no. 11Bd and 11Ba);

- likewise, it is the same Company that identified the conditions and requirements for the user's refund

request (e.g., the type of delay and its correlation with the presence of ongoing construction sites; see ASPI note of May 24, 2022, Attachments no. 11A and 11Bd); thus entrusting Free to X S.r.l., based on criteria already precisely established by ASPI, with tasks related exclusively to the implementation phase of the aforementioned service;

- the latter is the subject required to provide periodic updates to the “MIMS on the progress of the Cashback system,” to provide “clarifications and/or information” at its request, as well as to “report quarterly on the cumulative amount of the burden incurred” to comply with the compensatory measures subject to the Agreement (see ASPI note of May 24, 2022, Annex no. 11Bd, p. 2).

From the overall picture described, it emerges that, with reference to the processing related to the Cashback service, the purposes and the related means were determined by ASPI in the terms outlined above and, therefore, it holds the role of data controller. Conversely, Free to X S.r.l., contrary to what was represented by the Company during the investigation (see above para. 1), acts, in light of the express mandate conferred upon it by ASPI regarding the Cashback service, as the data processor for the related processing.

On this point, the indications provided by ASPI and Free to X S.r.l. in the act of designation of the processor signed on July 20, 2021 (see ASPI note of November 23, 2021, Annex no. 2 and note of Free to X S.r.l. of November 23, 2021, Annex no. 4) are of no relevance; this is also considering what was specified by the European Data Protection Board regarding the circumstance that “if a party (...) effectively decides the purposes and means of processing personal data, it will be the controller [of the same] (...) even if a contract designates it as a processor” (see EDPB, Guidelines no. 07/2020, cited, p. 14). Free to X S.r.l., in fact, carries out a series of activities that underlie the processing of users' personal data, but such activities are performed on behalf of ASPI and based on the procedures and criteria identified by it.

Moreover, for the correct framing of the roles of data controller and data processor, the recognition by ASPI of certain margins of decision-making autonomy granted to Free to X S.r.l. specifically related to the design and management of the App is also not relevant (see note of Free to X of January 19, 2022, pp. 4-5).

The designation as a data processor does not, in fact, exclude the possibility for the latter to autonomously make certain decisions regarding the processing, provided that these pertain to the methods of execution of the same (so-called “non-essential means”; see EDPB, Guidelines no. 07/2020, cited, p. 16).

The decision-making powers of Free to X S.r.l., in fact, do not relate to the essential purposes and means of the processing related to the Cashback service, but rather to the development and management of the App as a concrete tool for its realization.

Considering all of the above:

- it was ASPI that identified as the method of implementation of the compensatory measures under its responsibility, “the evolving automatic system of tariff discounts for users in case of delays caused by construction sites” called Cashback and established that it would be “activated through IT tools included under the name Free to X – Cashback, which the user could access by registering and providing the necessary data for the actual reimbursement” (see ASPI note of May 24, 2022, Annex No. 11Bd, pages 1-2);

- the choices made by Free to X S.r.l. regarding the development of the App and the management of the Cashback service through it, therefore concern the “non-essential means” of processing, as they relate to “practical aspects (...) linked to the execution of [the same]” whose scope and related purposes have been exclusively determined by ASPI (cf. EDPB, Guidelines No. 07/2020, cited, page 16).

Lastly, it remains established that, in particular contexts, such as those related to processing carried out through mobile applications, the same entity can act simultaneously as a controller for certain processing activities and as a processor for other processing activities (see EDPB, Guidelines No. 07/2020, cited, page 13; see also the opinion of the Authority, adopted on July 28, 2022, on the draft

decree concerning the digital platform for the provision of economic benefits granted by public administrations, to be adopted, in agreement with the Minister of Economy and Finance, pursuant to Article 28bis, paragraph 3, of Decree Law No. 152 of November 6, 2021, converted, with amendments, by Law No. 233 of December 29, 2021).

This circumstance also appears to be configured in the present case, where Free to X S.r.l., with reference to the processing for which it autonomously determines the respective purposes and means - such as those strictly related to the registration and management of the user account (cf. note from Free to X S.r.l. of November 23, 2021, Annex No. 2 and lastly note of December 21, 2022, Annex No. 2a, point A "Processing for which Free To X S.r.l. is the controller") - acts as a controller, while simultaneously holding the role of processor concerning the Cashback service.

The aforementioned requalification of the relationships between ASPI and Free to X S.r.l. in the terms outlined above has immediate repercussions on the compliance with personal data protection regulations of the information provided, pursuant to Article 13 of the Regulation, to users.

The latter, in fact, identifies Free to X S.r.l. as the controller of all the processing indicated therein, which also includes that aimed primarily at providing the Cashback service. Therefore, the information, in this case, has not been adequately formulated, considering that, with reference to the Cashback service, it should have reported the correct indication regarding the actual identity of the controller (i.e., ASPI) and the purposes of the related processing, as well as the additional information to ensure, in compliance with the general principles set out in Article 5 of the Regulation, a fair and transparent processing towards users.

As a result, there is a violation by ASPI of Article 5, paragraph 1, letter a) of the Regulation concerning the principles of fairness and transparency, as well as of Article 13 of the Regulation with reference to the information to be provided to the data subjects.

Lastly, in representing that the relationships between the two Companies must be governed, pursuant to Article 28 of the Regulation, on the basis of a contract or other legal act, it is also noted that the same, with reference to the Cashback service, contrary to what emerged from the documentation on file, should have bound Free to X S.r.l., as the processor, to ASPI as the controller of the same and not vice versa (see ASPI note of November 23, 2021, Annex No. 2 - Appointment of ASPI as processor for the service called "Cashback").

The failure to designate Free to X S.r.l. as the processor concerning the Cashback service therefore results in a violation by ASPI of Article 28 of the Regulation.

The evidence of the aforementioned violations also emerges with reference to what was noted during the proceedings regarding the initiative recently undertaken by the Company, aimed at adapting the model of information to be provided to users to the different configuration of privacy roles outlined above, as well as to designate, pursuant to Article 28 of the Regulation, Free to X S.r.l. as the processor concerning the Cashback service and those related to it (see note of December 1, 2022, page 3).

Having duly considered all of the reasons collectively highlighted, it appears that the controller has engaged in conduct contrary to Article 5, paragraph 1, letter a), Article 13, and Article 28 of the Regulation for a duration of approximately one year (specifically, with reference to the aspects related to the information from September 15, 2021, to December 15, 2022, while concerning the fulfillment of Article 28 of the Regulation from September 15, 2021, to November 21, 2022). The aforementioned violations, in light of what ASPI declared (see note of May 29, 2023, page 2), have involved approximately 100,000 (one hundred thousand) data subjects as users of the Cashback service.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

In light of all that has been collectively noted,

The Authority believes that the statements, documentation, and reconstructions provided by the data

controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the proceedings and are therefore unsuitable to order the archiving of the present proceedings, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company is indeed unlawful, as stated above, with reference to the violation of the principles of fairness and transparency (Articles 5, para. 1, lett. a), and Article 13 of the Regulation, due to the failure to communicate adequate information regarding the processing, as well as the obligation of the controller regarding the designation of data processors (Article 28 of the Regulation). The violation of the aforementioned provisions entails the application of the administrative sanctions provided for by Article 83, para. 4, lett. a) and Article 83, para. 5, letters a) and b) of the Regulation. Lastly, regarding the exercise of corrective powers under Article 58, para. 2, of the Regulation, it is noted that ASPI, during the proceedings, has aligned the subjective scope of the processing in accordance with the above-mentioned regulatory framework, adopting the following measures consisting of:

- the modification of the information model to be provided to users who use the Cashback service upon registration via the App and/or the website www.freeto-x.it (see “Information on the Protection of Personal Data pursuant to European Regulation No. 679/2016” updated as of December 19, 2022, Annex No. 2a of the note dated December 21, 2022);
- the transmission to users of the App, starting from December 15, 2022, of the communication containing indications regarding the changes made to the above-mentioned information model (see Annex 4 of the note dated December 1, 2022);
- the designation pursuant to Article 28 of the Regulation of Free to X S.r.l. as the data processor regarding the Cashback service (Annex 1 of the note dated December 1, 2022). In this context, therefore, considering that specific measures have been adopted to conform the processing in question to the current regulations on the protection of personal data, the prerequisites for the adoption of the corrective measures referred to in Article 58, para. 2, of the Regulation are not currently met.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, para. 2, lett. i), and 83 of the Regulation; Article 166, paragraph 7, of the Code). The Garante, pursuant to Article 58, para. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by ASPI, which has been found to be unlawful, as stated above. It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it provides that “if, in relation to the same processing or to related processing, a data controller [...] violates, with intent or negligence, various provisions of this Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, para. 5. With reference to the elements listed in Article 83, para. 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate and dissuasive in each individual case” (Article 83, para. 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

- regarding the severity of the violations, the nature of the violations has been considered relevant — as they concern non-compliance with the general principles of processing, and in particular the principles of fairness and transparency — the relative duration — quantifiable at about one year — as well as the high number of affected individuals as it corresponds to one-third of the total number of subjects registered on the App. It is also noted that the aforementioned violations concerned the incorrect configuration of the subjective scope of the processing carried out by the Company, thus preventing users from having accurate information regarding the ownership of the latter (Article 83, para. 2, lett. a) of the Regulation);
- regarding the intentional or negligent nature of the violations referred to in Article 83, para. 2, lett. b) of the Regulation, the negligent conduct of the Company has been taken into account, which stated that it had attributed the ownership of the processing related to the Cashback service to Free to X

S.r.l., having erroneously considered exclusively the circumstance that “it was entirely designed and implemented by Free to X through the creation of the eponymous App whose operation is entirely managed and administered by the latter” (see note dated December 1, 2022, page 2);

- the adoption, by the controller, of measures aimed at mitigating or eliminating the consequences of the violation (Article 83, para. 2, lett. c) of the Regulation). In this regard, it should be positively noted that ASPI has promptly adopted the measures described in paragraph.

5 of this provision;

- the circumstance that the Company has actively cooperated with the Authority during the proceedings (art. 83, par. 2, lett. f) of the Regulation);

- the fact that there are no previous violations committed by the data controller or previous measures referred to in art. 58 of the Regulation (art. 83, par. 2, lett. e) of the Regulation).

In favor of the data controller, it has also been taken into account that the Cashback service is provided by the Company free of charge and therefore the latter has not obtained any direct economic benefit from the processing in question (art. 83, par. 2, lett. k) of the Regulation).

It is also considered that the economic conditions of the offender, determined based on the turnover of the Company, as stated in the financial statements for the year 2021 (the latest available), referring exclusively to the income statement item identified in the so-called "Toll Revenues," are relevant in this case, due to the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere when determining the amount of the sanction (art. 83, par. 1, of the Regulation).

In light of the above elements and the assessments made, it is deemed appropriate, in this specific case, to impose on ASPI the administrative sanction of a payment of an amount equal to euro 1,000,000 (one million).

In this context, it is also considered that pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the Guarantor's website should proceed. This is in consideration of the type of violations identified that have affected the general principles of processing, particularly the principles of fairness and transparency, as well as the circumstance that they involved the incorrect configuration of the subjective scope of the processing carried out by the Company, thus preventing users, for a considerable period of time, from having accurate information regarding the ownership of the latter.

Finally, it is believed that the conditions referred to in art. 17 of the Regulation of the Guarantor no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to arts. 57, par. 1, lett. a) and 83, of the Regulation and art. 144, par. 1 of the Code, notes the illegality of the processing carried out by Autostrade per l'Italia S.p.A., based in Rome, VAT number 07516911000, as stated in the reasoning, for the violation of arts. 5, par. 1, lett. a) and 13 of the Regulation, as well as art. 28 of the Regulation;

believes that the conditions referred to in art. 17 of the Regulation of the Guarantor no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor, are met.

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation to Autostrade per l'Italia S.p.A., to pay the sum of euro 1,000,000 (one million) as an administrative pecuniary sanction for the violations indicated in this provision.

COMMANDS

therefore Autostrade per l'Italia S.p.A. to pay the aforementioned sum of euro 1,000,000 (one million), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, par. 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in art. 10, par. 3, of legislative decree no. 150 of September 1, 2011 provided for the submission of the appeal as indicated below.

DISPOSES

the publication of this provision on the Guarantor's website pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of legislative decree no. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, June 22, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi